

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ray Azcui	Team: Team # 3	CCRB Case #: 9903764	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 08/03/1999 2:55 PM	Location of Incident: § 87(2)(b) Brooklyn	Precinct: 79	18 Mo. SOL 2/3/2001	EO SOL 2/3/2001	
Date/Time CV Reported Tue, 08/03/1999 3:05 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/18/1999 8:27 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Deidat Urprasad	05339	914030	079 Precinct
2. DT3 Howard Avery	02036	881859	079 Detective Squad
3. DT3 John Salley	02821	874727	079 Detective Squad

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Herman Kirton	6900	901780	079 Precinct

Officer(s)	Allegation	Investigator Recommendation
A.DT3 John Salley	Force: Det John Salley used a chokehold against § 87(2)(b)	
B.DT3 Howard Avery	Abuse: Det Howard Avery threatened to arrest § 87(2)(b)	
C.DT3 John Salley	Abuse: Det John Salley threatened to arrest § 87(2)(b)	
D.SGT Deidat Urprasad	Abuse: Sgt. Deidat Urprasad threatened to damage § 87(2)(b)'s property.	
E.SGT Deidat Urprasad	Force: Sgt. Deidat Urprasad used physical force against § 87(2)(b)	
F.SGT Deidat Urprasad	Abuse: Sgt. Deidat Urprasad entered and searched § 87(2)(b)'s house.	
G.SGT Deidat Urprasad	Discourtesy: Sgt. Deidat Urprasad spoke obscenely and/or rudely to § 87(2)(b)	
H.SGT Deidat Urprasad	Force: Sgt. Deidat Urprasad used physical force against § 87(2)(b)	

Synopsis

Det Salley and Det Howard went to § 87(2)(b) in Brooklyn to speak with a shooting suspect. They observed a black female in the street, later identified as § 87(2)(b) cursing and yelling at them. § 87(2)(b)'s boyfriend, § 87(2)(b) approached the detectives and he was arrested. § 87(2)(b) claimed that Det Salley grabbed § 87(2)(b) in a chokehold and pushed him off the bicycle to the ground. § 87(2)(b) alleged that one of the detectives threatened to arrest her when she was on the phone with IAB. When the sergeant came on the scene, § 87(2)(b) ran into the house to avoid being arrested.

§ 87(2)(b) stated that Sgt. Urprasad pulled her out of the house and entered the house to search for § 87(2)(b). § 87(2)(b) alleged that Sgt. Urprasad cursed at her and threatened to break the door if they did not open it. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) § 87(2)(b) female was interviewed at CCRB on September 22, 1999 (enc. 6A). § 87(2)(b) stated that on August 3, 1999, she and her boyfriend, § 87(2)(b) were walking towards her home at § 87(2)(b) in Brooklyn. § 87(2)(b) stated when they reached her house she saw two black plainclothes detectives later identified as Det John Salley and Det Avery Howard standing on the top of the stairs of her building. § 87(2)(b) asked Det Salley and Det Howard what they wanted. The detectives told her that she knew why they were there. § 87(2)(b) stated that she did not know why Det Salley and Det Howard were at her house, but she told them if they did not leave she would call the police and IAB.

§ 87(2)(b) stated that she went inside the house and called the police and IAB. She was on the phone with IAB when § 87(2)(b) heard one of the detectives threatening to arrest her. However, § 87(2)(b) did not see which of the detectives was threatening to arrest her. § 87(2)(b)'s aunt, § 87(2)(b) came downstairs and the officers came through the front door. § 87(2)(b) stated that § 87(2)(b) was in the hallway of the house and pushed Det Salley and Det Howard out of the house into the vestibule area. § 87(2)(b) locked the door leaving Det Salley and Det Howard in the vestibule area with her cousin, § 87(2)(b) § 87(2)(b) was standing in the doorway of her bedroom, looking at Det Salley and Det Howard through the glass door. § 87(2)(b) observed that her boyfriend, § 87(2)(b) was still outside with his bicycle. She alleged that Det Salley grabbed § 87(2)(b) in a chokehold and pushed him off the bicycle. § 87(2)(b) stated that Det Salley handcuffed § 87(2)(b) and took him towards a police car. She stated that Det Salley and an unidentified officer were pushing § 87(2)(b)'s head into car as they were trying to get § 87(2)(b) into the police car." § 87(2)(b) stated that sometime later, approximately twenty officers arrived on the scene. She told Det Salley and Det Howard through the vestibule door that she called the police. At first § 87(2)(b) thought the officers were responding to her call but she later found out they were responding as backups for the detectives. § 87(2)(b) unlocked the vestibule door because § 87(2)(b) was locked out with Det Salley and Det Howard. She then saw that officers were running towards the house, and § 87(2)(b) ran upstairs to the § 87(2)(b) floor. Unidentified officers went through the § 87(2)(b) bedrooms and kitchen looking for § 87(2)(b). § 87(2)(b) remained on the § 87(2)(b) floor while unidentified officers looked through the § 87(2)(b) floor for her.

§ 87(2)(b) stated that from the § 87(2)(b) floor window in the bedroom she observed Det. Salley on the street pointing out people to be arrested. However, she was not certain as to who Det Salley was pointing at to be arrested. § 87(2)(b) stated that Det Salley was speaking to a

sergeant, later identified as Sgt. Urprasad and pointing at someone. When she heard the officers knocking loudly on the § 87(2)(b) floor door she hid under her cousin's bed in the back room. § 87(2)(b) stated that the officers couldn't get into the bedroom because her cousin, Byron and his girlfriend blocked the door.

§ 87(2)(b) stated that officers assumed the door was locked and gave up trying to get into the bedroom. § 87(2)(b) heard them say, "Come on, we got two of them," and they went back down stairs.

§ 87(2)(b) stated that her aunt, § 87(2)(b) and her cousin, § 87(2)(b) were handcuffed and taken to the 079 Precinct. § 87(2)(b) stated that later that night she went to the 079 Precinct and filed a complaint against the officers. § 87(2)(b) obtained the name of the two detectives through her attorney. § 87(2)(b) did not provide any information about her attorney.

Results of Investigation

§ 87(2)(b) was interviewed at CCRB on September 17, 1999 (enc. 5A&B) and § 87(2)(b) was interviewed on November 3, 1999 (enc. 7A). § 87(2)(b) and § 87(2)(b) stated that on August 3, 1999, at approximately 2:55 PM, they were on the § 87(2)(b) floor and heard loud talking coming from § 87(2)(b)'s apartment downstairs. § 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) was talking on the telephone with the police. § 87(2)(b) stated that she came out of the shower and opened the front door. § 87(2)(b) stood outside the door and asked Det Sally and Det Howard who they were looking for. Det Salley and Det Howard informed § 87(2)(b) they were looking for her cousin, § 87(2)(b). § 87(2)(b) saw § 87(2)(b)'s boyfriend, § 87(2)(b) riding his bicycle to the front of the house. § 87(2)(b) alleged Det Salley approached § 87(2)(b) and grabbed § 87(2)(b) by his neck. § 87(2)(b) alleged Det Salley slammed § 87(2)(b) against a fence in front of the house. The bicycle fell down and Det Salley was still hold § 87(2)(b) by his neck. § 87(2)(b) alleged Det Salley threw § 87(2)(b) to the ground and handcuffed him. § 87(2)(b) did not claim that she saw the detectives arresting § 87(2)(b).

§ 87(2)(b) and § 87(2)(b) stated that a short time later several marked police cars sped up the street and stopped in front of their house. § 87(2)(b) stated that Sgt. Urprasad and PO Kirton got out of their vehicle and Det Salley pointed towards her house. Sgt. Urprasad and PO Kirton then ran towards the house and up the stairs. § 87(2)(b) was standing by the entrance door and when she saw the officers running towards her, § 87(2)(b) dropped the phone and ran to the § 87(2)(b) floor. When § 87(2)(b) ran to the § 87(2)(b) floor she locked the door leaving § 87(2)(b) and § 87(2)(b) locked out of the house inside the foyer area. When Sgt. Urprasad and PO Kirton reached the house they stepped inside the foyer area. § 87(2)(b) asked Sgt. Urprasad what was going on, and Sgt. Urprasad told § 87(2)(b) they wanted to get inside the house. § 87(2)(b) asked Sgt. Urprasad for a warrant but he told § 87(2)(b) they did not need a warrant to come into the house. Sgt. Urprasad grabbed § 87(2)(b) by her left wrist and pulled her out of the house. Sgt. Urprasad entered the foyer area and repeatedly hit the entrance door with his fists, while yelling to open the door. Sgt. Urprasad told § 87(2)(b) they wanted the female who ran upstairs, and she assumed he was referring to § 87(2)(b). Det Salley then told Sgt. Urprasad that they should forget it, but Sgt. Urprasad kept saying no.

§ 87(2)(b) stated that Sgt. Urprasad went inside the house and to the § 87(2)(b) floor of the house. § 87(2)(b) further alleged that Sgt. Urprasad pushed her bedroom door open and she yelled at Sgt. Urprasad "You can't go in there. You don't have a warrant. What are you looking for?" Sgt. Urprasad and Det Salley ignored § 87(2)(b) and searched around her bedroom. When uniformed officers were coming back downstairs, Sgt. Urprasad asked § 87(2)(b) "Who lives on the § 87(2)(b) floor?" § 87(2)(b) told Sgt. Urprasad that her niece lived on the § 87(2)(b) floor. Sgt. Urprasad told an officer, "Why don't you break down the door and search

there?” § 87(2)(b) stated that Sgt. Urprasad told an officer to arrest her and she was handcuffed.

§ 87(2)(b) stated that one of the detectives tried to show her papers that explained why they were at the house and they were looking for a male who allegedly lived in their house. § 87(2)(b) went over to the officers who just arrived on scene because she thought they were responding to her call. However, § 87(2)(b) realized they were assisting the detectives. § 87(2)(b) stated that § 87(2)(b) was placed into a police car and she saw Sgt. Urprasad pointing at § 87(2)(b) and yelling to the other officers, “get her!” Some officers ran up the stairs, but § 87(2)(b) ran into the house before the officers got to her. § 87(2)(b) stated that § 87(2)(b) locked the door behind her and the officers could not get into the house.

§ 87(2)(b) stated that Sgt. Urprasad was in the foyer area and yelled, “Open the fucking door!” § 87(2)(b) couldn’t comply because she had a towel around her, and she did not have the keys to open the door into the house. § 87(2)(b) stated Sgt. Urprasad yelled, “I don’t fucking care! Open the fucking door!” § 87(2)(b) alleged Sgt. Urprasad took the phone out of her hand and threw it down on the floor. § 87(2)(b) stated Sgt. Urprasad poked her in the chest with his index finger and told her to open the fucking door. § 87(2)(b) stated that some of the other officers came up the stairs and opened the door. § 87(2)(b) stated that Sgt. Urprasad went into the house and § 87(2)(b) told him he could not enter without a warrant. She stayed downstairs but could hear them walking around and kicking the doors.

The investigator made numerous attempts to contact § 87(2)(b). On September 10, 1999 and September 30, 1999, Inv. Fasano sent letters to § 87(2)(b)’s residence. On March 10, 2000, the investigator visited § 87(2)(b)’s residence and left a contact letter for him. § 87(2)(b) has not contacted the investigator regarding this investigation. § 87(2)(g) There was no telephone number available to contact § 87(2)(b) and attempts to obtain his number through the Electronic Coles Directory were met with negative results.

Officers Interview

Det John Salley and Avery Howard were interviewed at CCRB on June 13, 2000 (enc. #8A & 10A). § 87(2)(g)

Det. Salley and Det Howard were enroute to § 87(2)(b) after they received information that a suspect they were looking for resided at that address. Det Salley and Det Howard were informed that the individual could be located at Willoughby and Marcy Ave. While Det Salley and Det Howard were at Willoughby and Marcy Ave, § 87(2)(b) came from around the corner and approached Det Salley and Det Howard. The detectives stated that § 87(2)(b) was cursing, yelling and screaming at them for no apparent reason. Det Salley and Det Howard did not pay any attention to § 87(2)(b) and continued to § 87(2)(b) when they could not locate the individual they were looking for on Willoughby and Marcy Ave. Det Salley and Det Howard stated that they were standing on the top steps of § 87(2)(b) when § 87(2)(b) walked up the steps and asked them what they wanted. They asked § 87(2)(b) to identify herself, but she refused and threatened to throw acid at them if they did not leave. § 87(2)(b) came back out several minutes later with her hands behind her back. Det Salley grabbed § 87(2)(b)’s hands and checked to see if she had anything in her hands. A few minutes later § 87(2)(b) arrived on his bicycle and asked what they were doing to § 87(2)(b). § 87(2)(b) got off the bicycle and ran towards Det Salley and Det Howard. Det Salley and Det Howard grabbed § 87(2)(b) and handcuffed him. Det Salley and Det Howard stated that at first § 87(2)(b) did not want to be handcuffed and would not place his hands behind his back. Det Salley and Det Howard stated that § 87(2)(b) was eventually handcuffed. Det Salley and Det Howard then escorted § 87(2)(b) to their unmarked police car. However, § 87(2)(b) would not get into the police car.

A crowd was gathering and Det Salley radioed for additional officers to assist them. The first unit on the scene was Sgt. Urprasad, and Det Salley explained the situation to Sgt. Urprasad. Det Salley told Sgt. Urprasad that he wanted to arrest § 87(2)(b) for disorderly conduct. Sgt. Urprasad walked towards § 87(2)(b)'s house while Det Salley and Det Howard remained by the unmarked police car. When Sgt. Urprasad got within a few feet of § 87(2)(b) she ran into the house. Sgt. Urprasad tried to get § 87(2)(b) but § 87(2)(b) pushed Sgt. Urprasad and scratched him on the hand. Sgt. Urprasad then pushed § 87(2)(b) and instructed a uniformed officer to arrest § 87(2)(b). Det Salley stated that he told Sgt. Urprasad that they would take § 87(2)(b) and § 87(2)(b) to the precinct. Det Salley and Det Howard stated that they told § 87(2)(b) she was going to be arrested for disorderly conduct for yelling, screaming and cursing at them. Det Salley denied grabbing § 87(2)(b) by the neck and pushing him to the ground. Det Salley and Det Howard further stated that § 87(2)(b) got off the bicycle by himself and went towards them.

PO Herman Kirton was interviewed at CCRB on June 14, 2000 (enc. # 11A). PO Kirton stated that he responded to § 87(2)(b) with Sgt. Urprasad. He stated that they responded to a 10-85 from detectives of the 079 PDU. He stated that he and Sgt. Urprasad were the first unit to arrive on the scene. When they arrived there was a black female standing on the top of the stairs at § 87(2)(b). Det Salley and Det Howard had a brief conversation with Sgt. Urprasad, but he did not hear their conversation. Sgt. Urprasad went towards the female to speak with her while PO Kirton remained by the patrol car. He stated when additional units arrived he went over to where Sgt. Urprasad and the lady were standing. However, he did not recall who was on the stairs of the house with him and Sgt. Urprasad.

PO Kirton stated that § 87(2)(b) was yelling and § 87(2)(b) was inside the house also yelling. § 87(2)(b) ran into the house, and § 87(2)(b) stepped out of the house. PO Kirton stated that he did not recall whether Sgt. Urprasad pushed § 87(2)(b). He stated that the door was open, and Sgt. Urprasad walked into the house. He remained outside and did not see what happened in the house. He denied Sgt. Urprasad kicked the door or threatened to break the door open.

Sgt. Deidat Urprasad was interviewed at CCRB on June 19, 2000 (enc. #13A). Sgt. Urprasad stated that he and his driver, PO Kirton responded to a 10-13 (assist police officers) from detectives of the 079 PDU. They were the first unit to arrive on the scene, and Det Salley told him he wanted § 87(2)(b) arrested for disorderly conduct. Det Salley pointed to § 87(2)(b) and Sgt. Urprasad went towards § 87(2)(b) to arrest her. § 87(2)(b) ran into the house, and § 87(2)(b) blocked his entrance into the house. § 87(2)(b) pushed Sgt. Urprasad and scratched him on the right wrist. § 87(2)(b) would not allow him to pursue § 87(2)(b) by blocking his entrance. He kept his sights on § 87(2)(b) and pushed § 87(2)(b) back. Sgt. Urprasad walked into the house and searched the § 87(2)(b) floor for § 87(2)(b). Sgt. Urprasad stated that he searched the hallway, but he lost sight of § 87(2)(b). Sgt. Urprasad stated the door to the house was opened and as he entered the hallway area he observed that there were a number of apartment doors. Sgt. Urprasad stated that the house appeared to be a rooming house with apartment doors throughout the house. When Sgt. Urprasad searched the hallway and could not find § 87(2)(b) he ordered the search to end and exited the house. Sgt. Urprasad felt that he did not have probable cause to continue the search through the entire house.

Conclusions and Recommendations

Allegation A: Force: Det John Salley used chokehold against § 87(2)(b) in violation of Patrol Guide Procedure 203-11

§ 87(2)(b) stated that Det Salley grabbed § 87(2)(b) who was on his bicycle and placed him in a chokehold and pushed him down to the ground. § 87(2)(b) further alleged that

Det Salley pushed § 87(2)(b)'s head down into the police car. § 87(2)(b) stated that when she came downstairs from her room, § 87(2)(b) told her the police had arrested § 87(2)(b). § 87(2)(b) stated that Det Salley grabbed § 87(2)(b) by his neck and slammed him against the fence in front of her house.

Det Salley and Det Howard stated that § 87(2)(b) jumped off the bicycle and ran towards them. Det Salley and Det Howard grabbed § 87(2)(b) by his arms and placed him on the ground. § 87(2)(b) resisted arrest by not allowing Det Salley and Det Howard to place his hands behind his back and be handcuffed. Both detectives stated that § 87(2)(b) refused to get in the police car, but he was eventually placed into the police car. Sgt. Urprasad and PO Kirton were not present to witness the incident between § 87(2)(b) and the detectives.

§ 87(2)(g)

Allegation B-C: Abuse of Authority: Det John Salley and Det Avery Howard threatened to arrest § 87(2)(b) in violation of Patrol Guide Procedure 208-01.

§ 87(2)(b) alleged that while on the phone with IAB she overheard one of the detectives threatening to arrest her. § 87(2)(b) or § 87(2)(b) did not allege that the detectives threatened to arrest § 87(2)(b). Det Salley and Det Howard stated that § 87(2)(b) was screaming, cursing and yelling at them for no apparent reason. They told § 87(2)(b) that she could be arrested for disorderly conduct if she continued yelling, screaming and cursing.

§ 87(2)(g)

Allegation D: Abuse of Authority: Sgt. Urprasad threatened to damage § 87(2)(b)'s property in violation of Patrol Guide Procedure 203-10.

§ 87(2)(b) did not allege that Sgt. Urprasad or an officer threatened to break her property. However, § 87(2)(b) and § 87(2)(b) alleged that Sgt. Urprasad was kicking the door and threatening to break the door if they did not open the door for him. Sgt. Urprasad stated that he did not threaten to kick in the door. He stated that the door was open and he walked into the house. PO Kirton, Det Howard and Det Salley corroborated Sgt. Urprasad's statement.

§ 87(2)(g)

Allegation E: Force: Sgt. Deidat Urprasad used physical force against § 87(2)(b) in violation of Patrol Guide Procedure 203-11

§ 87(2)(b) claimed that Sgt. Urprasad grabbed her by her arm and pulled her out of the house. § 87(2)(b) was not present to witness the allegation. § 87(2)(b) did not claim that Sgt. Urprasad used physical force against § 87(2)(b). Sgt. Urprasad stated that he went to arrest § 87(2)(b) and § 87(2)(b) blocked him from entering the house. § 87(2)(b) then shoved him and scratched him on the left wrist. Sgt. Urprasad stated he pushed § 87(2)(b) back and instructed an officer to arrest her. § 87(2)(g)

§ 87(2)(g)

Allegation F: Sgt. Deidat Urprasad entered and searched § 87(2)(b)'s house in violation of Patrol Guide Procedure

§ 87(2)(b) stated that she ran into her house when she saw Sgt. Urprasad running towards her. § 87(2)(b) stated that she ran up to the § 87(2)(b) floor where she hid until the police went back downstairs. § 87(2)(b) and § 87(2)(b) stated that Sgt. Urprasad and other officers ran inside the house. They stated that the police searched their house looking for § 87(2)(b)

Sgt. Urprasad stated that he entered the house and searched for § 87(2)(b). He stated that when he lost sight of her he ordered the officers to exit the house. Det Salley, Det Howard, and PO Kirton corroborated Sgt. Urprasad statement.

§ 87(2)(b) fled into the house to avoid being arrested. Sgt. Urprasad followed § 87(2)(b) into the house to place her under arrest. When Sgt. Urprasad lost sight of § 87(2)(b) he ended the search in the hallway and exited the house.

§ 87(2)(g)

Allegation G: Sgt. Deidat Urprasad spoke obscenely and rudely to § 87(2)(b) in violation of Patrol Guide Procedure 203-09.

§ 87(2)(b) alleged that Sgt. Urprasad told her “Open the fucking door!” and “I don’t fucking care! Open the fucking door.” § 87(2)(b) did not allege that Sgt. Urprasad cursed when he entered the house. Sgt. Urprasad denied he cursed at § 87(2)(b)

§ 87(2)(g)

Under Patrol Guide Procedure 203-09 (enc. 1) the officers are required to be courteous, professionals and respectful when dealing with the public. In the matter of NYCPD vs. Leslie Williams, OATH index number 293/92, it was held that, it is “not misconduct where in certain situations a police officer has resorted to harsh or even profane language to more forcefully make a point or to gain compliance with an order or direction. There are certain times when strong language is appropriate, even necessary, to obtain compliance with an order.” § 87(2)(g)

Allegation H: Force: Sgt. Deidat Urprasad used physical force against § 87(2)(b) in violation of Patrol Guide Procedure 203-11

§ 87(2)(b) stated that Sgt. Urprasad poked her on the chest with his finger. §
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Investigator:	Date:
Supervisor:	Date:
Reviewed by:	Date:
Reviewed by:	Date: